

17/8/26

24/8/26

31/8/26

3/9/26

- i) Stated that Art. 21 is the most important Article in the Constitution for the
- ii) Stated the **Vellore Citizens Case** — established that Right to Life
- iii) Stated EIA — Environmental Impact Assessment.
- iv) Established that Profoundly our wishes — to be able to see Blue Skies
- v) **Sulhas Kumar v. S/o Bihari** — The Court recognized that "Right to life
- vi) Strongly emphasized the Constitutional Triangle = 21, DPSP Art. 48A,
- vii) "Art. 21 gives me a Constitutional claim. Art. 48A gives the State a
- viii) Began with group activity — Presenting hypotheticals where environment or not.
- ix) Focused on the application of writs of which ones for the
- x) Stated about "Stockholm 1972", Rio 1992.
- xi) Hinted that question on Right to life, which includes environment, may come
- xii) Began connecting Preamble of the Constitution — "Socialist" is tal
- xiii) **MC Mehta case, River Pollution case, RLKE case, Union Carbide**
- xiv) Unit IV, Topic 1 is completed.

DATE — 24/8/26

i) Began by stating that for the mid sem exam — unit 1, 2, 3, 4 is coming.

ii) Also stated about the content link (Gus share point) — available in group.

iii) Stated that the Constitution articles have to be studied, in relation to what has

iv) https://gusindia01-my.sharepoint.com/:f:/g/personal/shubham_joshi_ddn_up

v) Started discussing about the Internal Assessment — page 4 of the Course plan

vi) Stated that the for the first two assessments — AI can be used — 1. And 2. AI (since I don't want to share the way I actually use you)

vii) Stated that for the marking system, professors cannot actually give everyone great, but better than everyone else.

viii) Stated that “Detailed Rubric” in the Course Plan need be followed (however, definitely go beyond the rubrics stated.

ix) Began with Unit IV — Strict Liability and Absolute Liability — begun with this judgements and case studies are going to be discussed.

x) Stated that Absolute Liability — No exceptions at all for excluding liability of s

xi) Stated that under Strict Liability — Act of God can be an exception.

xii) stated that for these above topics, explanation of the Rylands v Fletcher and

xiii) Stated that — to counter the action of shying away from liability, the concep

xiv) Hinted that Strict Liability and Absolute Liability may come for 5 marks or 10

DATE — 31/8/26

i) Began with the Constitutional Triangle and [Subah Kumar v. State of Bihar](#).

ii) BNS addresses environmental protection primarily through Sections 270, 271, — it punishes any act or omission that causes danger or annoyance to the public negligent act likely to spread infection all disease dangerous to life. Section 279 people. Section 280 — making atmosphere noxious to health. Stated that these

people. Section 200 — making atmosphere noxious to health. Stated that these

iii) BNSS — Section 152 — it empowers District or Sub-divisional magistrates to clearing obstructions. Stated that these particular sections must be studied for the exam.

iv) **Pratipal Sharma v. Department of Environment (2026)** — Section 26 of the National Environment Protection Act, 1986 — Ruling — keeping for carrying of the waste. Sections 270 of BNS and Section 26 of NGT will be studied for the exam.

v) **State of H.P — Judicial clarification by H.P. High Court (clarification issued by the court regarding the new code of law regarding public nuisance)** — effecting civic sanitation infrastructure under the new code. It clarifies that any public nuisance affecting the health, physical discomfort to the community, any public nuisance affecting the community, any public nuisance affecting the community.

vi) **Zaifal v. Tehsildar and Executive Magistrate (2025) Kerala HC** — also stated to be studied for the exam.

vii) Stated the distinction between “private nuisance” and “public nuisance”.

viii) **Vellore Citizens Welfare Forum v. Union of India (1996)**, and **Municipal Council v. Maruthi** — also stated to be studied for the exam. nonetheless these are very important and must be studied as well, for the exam.

DATE — 3/9/26

i) Began by stating that Torts would be covered, the relevant areas of such, in this exam.

ii) Stated that 2 areas would be covered — a) Nuisance b) Negligence.

iii) Environment pollution as a Tort — 2 branches — a) Negligence b) Nuisance (a) Nuisance

iv) Began with the branch of Nuisance — “It is an interference of the right of other persons in the use and enjoyment of their property. Nuisance is generally seen more than Private Nuisance, with regard to Environment. Nuisance is enough to know for the exam.

v) For Public Nuisance — “It is caused when the action of one, effects the community at large.”

vi) For Private Nuisance — “Example — When the pollution caused harm to a group of people, is a Private Nuisance relating to the environment.”

vii) Stated — “2 significant factors to determine tortious liability are — a) Foreseeability b) Reasonable person test.”

viii) Began with Negligence — Stated essentials of negligence — stated about the concept of “Absolute Liability” and **M.C Mehta v. Union of India ; Sreemram Iyer v. Union of India**

ix) Negligence — **Naresh Datt Tyagi v. State of Uttar Pradesh (1990)** — Fumes from a factory caused harm to children along with the fetus of a pregnant mother. The Court held the case to be a tortious liability.

x) Stated that the above is going to come for minimum 2 marks and maximum 5 marks.

xi) Began with doubt clearing sessions, since Unit 1, 2, 3, 4 — for Mid sem exam.

xii) Stated about the “Polluter Pays Principle”.

xiii) Since this subject's class is also taken online by different faculty (although the topics that cover the topics that have not been covered by Professor. The data for such topics
xiv) Stated that at least 2 to 3 cases need to be remembered for each topic. Probably the number of cases to be remembered may be reduced.

DATE — 7/9/26

- i) Put forth question to the class — “For the development of a project, can the government do it?”
- ii) Stated that multiple laws are present so as to achieve the above question of ii)
- iii) Stated that, once judicial questions are decided, the jurisprudence of environmental law will be developed.
- iv) Mentioned the names of Indian Forest Act, 1927 of the British era or colonial era (Forest Rights Act 2006); then the Biodiversity Act (Act of 2002).
- v) Stated that which element will get the protection, will be decided on a case by case context.
- vi) Showed TABLE — Divided into 4 classes — 1) Forest 2) Wildlife 3) Conservation 4) Biodiversity
Under 2) — c) Wildlife Protection is the sub class. Under 3) — d) Biodiversity Conservation
Under a) comes the Indian Forest Act, 1927. Under b) comes the Forest Conservation Act, 1980.
Under c) comes the Wildlife Protection Act, 1972. Under d) comes the Biodiversity Act, 2002. Under e) comes the Forest Rights Act, 2006.
- vii) Putting questions of violation or questions to be decided — and asking under which law it is decided.
- viii) Putting hypothetical questions — and asking us to take a side and argue using the law.

DATE — 14/9/26

- i) Began by stating that Professor is going to be discussing Past year's Mid semester exam question (one paragraph begin around 50 to 60 words).
- ii) Sent the question paper which Professor would be discussing, to classmate S

- iii) For Section C it could either be one question of 50 marks, or 2 questions of 25 marks each.
- iv) Stated that Section B is analytical. Also stated that for “Critically analyse”, no need to write an example question.
- v) In Section C, we provide you with an extract, list the facts, and then write according to the question. The question is of 25 or 50 marks, just citing the case and drawing the analogy from it.
- vi) Example question, and writing an example answer so that Professor can check the answer. The question is about absolute liability in contrast to strict liability — The answer I wrote — you know Rylands v. Fletcher, it's year, MC Mehta v. UOI, it's year; it's exceptions, plaintiff the defendant. The answer is about Absolute liability “dangerous and hazardous activity”. She does not look at length but she does also saying that handwriting should be legible, so as to not give her difficulty to read (my handwriting is quite bad). Specific comments to my answer — a) She told me not to write too much. b) She explained the reference to Strict and since it's the postulate it should be established from the beginning, however, again my answer's fine. Now, this might happen in the future, so she expects such to come first, so tune it accordingly. Additionally, although she told me to write the answer on my own, only after compiling all the data; which she asked me to do.
- vii) Stated that Section A's questions are factual oriented, mostly. However, that's not always the case. She said that factual data.
- viii) Stated to remember the landmark judgements that are relevant for Question 7.
- ix) Stated that the year's of the Conventions and the Landmark judgements must be mentioned.
- x) Stated that Question 7's excerpts is related to a particular judgement, therefore the answer must be correct. Therefore such types of questions which are based on judgement.
- xi) Stated to Email on 16/9/26, my answer on a 25 mark question so that Professor can check the answer.

the environment.

includes Right to Environment.

of eat healthy fresh food — as part of Art. 21.

"included Right to Enjoyment of Pollution Free Air & Water.

Fundamental Duty 51A(g).

Constitutional direction, Art. 51A(g) gives citizens a Constitutional responsibility."

we need to decide if to go along with the project at the cost of

these disputes.

being about environment indirectly.

case, Travalli case.

s been taught.

es_ac_in/lgCKK3sGxqj2R4DqFmZfQ6KQAbED3aTZz8DFHGu9TqcFbfg?e=UPzSpB
in.

Also, wants the prompt that we used (I personally have no intention of sharing the real pro

e the highest marks, therefore the subjective assignment submission of mine, need not b

I personally think that since the object is to score the maximum marks, then it should

topic since it's comparatively small for Professor to cover in one class. I suspect that rel

uch entity.

MC Mehta v Union of India is required to be explained.

t of Absolute Liability was introduced.

) marks in the Mid Semester Examinations.

279, 280. It targets public nuisance, pollution, health hazards. Section 270 — public nuis
c living in that area, it applies to localised pollution and ecological imbalance. Section 27
— fouling water of a public spring or reservoir making it unfit for the ordinary use of the
particular sections must be studied for the exam

particular sections must be studied for the exam.

issue conditional orders to remove public nuisances including stopping harmful traits of the exam.

itional Green Tribunal (NGT) was attracted. Issue — Gaps in the transit and monitoring — NGT ordered strict enforcement of the transit passes and maintaining chronological records as attracted. Very Important for the exam, hinting towards “shall” come.

the Court on its own volition) — The Himachal High Court clarified the definition of “public” and the scope of Section 152 of BNSS and stated that it includes trade, occupation, injury to environment and causing discomfort to the people living in the vicinity. to be very important.

il, Ratlam v. Vardhichand (1980) — stated that these although these cases deal with IPC, .

is class.

Also branched into 2 — Public Nuisance and Private Nuisance).

ers” — under Public (Larger Number of People) ; Private (One on One) — Stated that Public Nuisance — Also stated that the difference between Public Nuisance and Private Nuisance is

community at large — Ramlal v. Mustafabad Oil and Cotton Ginning (1968).

group of people but, that person suffered additional harm in addition to the harm suffered by

feasibility b) Reasonableness — For a) Forseeable Tankship Limited v. Miller Pty (1966).

the concept of “Foreseeability”; stated about the concept of “Reasonableness”. Stated about the Fertilisers case.

from the pesticides was released and it entered the adjacent building and caused death of a person. It was held to be clearly that of negligence ; Rylands v. Fletcher.

marks, in the exam, could be more if the question is that of an analytical format. are completed in class.

they would not frame the question paper) — there is also another link with different material that would also need to be drawn from such material. Professor also stated that since most of the cases are similar, strategically the number of cases

Government protect the rights of all elements simultaneously? — The answer is Yes.”
(
Environmental laws are established.
era; then the Post Independence era; then the Conservation Era; then the Rights Based
/ case basis — on whoever requires the protection the most. Mentioned about EIA in this
on 4) Tribals — Under 1) — a) Forest Governance and b) Forest Conservation are sub classes. Conservation is the sub class. Under 4) — e) Community Traditional Rights is the sub class. Conservation Act, 1980. Under c) comes the Wildlife Protection Act, 1972. Under d) comes the
for which Class and sub classes would it fall under and which law would be applicable?
ing environmental legality.

ester question paper, her grading system, and how many words she needs in the answer
tripurna. (I will upload.)

or can personally comment upon Professor's desired format, from my answer.

Workspace 'Workspace 1' in 'Environmental Law '

Page 14 (row 1, column 4)

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